

FEDERAL MARITIME COMMISSION

Docket Nos. 16-01, 16-07, 16-10, 16-11 and 17-09

IN RE VEHICLE CARRIER SERVICES

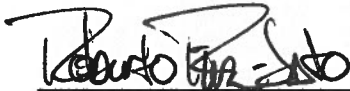
RESPONDENTS' SUPPLEMENTAL CONSOLIDATED MOTION TO DISMISS

Pursuant to Commission Rule 69, 46 *C.F.R.* § 502.69, and the October 18, 2017 initial scheduling order filed in Docket No. 17-09, Respondents Nippon Yusen Kabushiki Kaisha and NYK Line (North America) Inc. (collectively, "NYK"); EUKOR Car Carriers Inc. ("EUKOR"); Wallenius Wilhelmsen Logistics AS and Wallenius Wilhelmsen Logistics Americas LLC, (collectively, "WWL"); Compañía Sud Americana de Vapores S.A. and CSAV Agency North America, LLC (collectively, "CSAV"); Höegh Autoliners Holdings AS, Höegh Autoliners AS, Höegh Autoliners, Inc., Autotrans AS and Alliance Navigation LLC (collectively, "Höegh"), Mitsui O.S.K. Lines, Ltd., Mitsui O.S.K. Bulk Shipping (USA) Inc., World Logistics Service (U.S.A.) Inc. and Nissan Motor Car Carrier Co., Ltd. (collectively, "MOL") and Kawasaki Kisen Kaisha, Ltd., and "K" Line America, Inc. (collectively, "K Line") (NYK, EUKOR, WWL, CSAV, Höegh, MOL and "K" Line are referred to collectively as "Respondents") submit the following supplemental motion to dismiss the complaints filed in Docket Nos. 16-01, 16-07, 16-10, 16-11, and 17-09 with prejudice, and for such other and further relief as is consistent with that request.

Respondents will rely on their original briefs in support of their consolidated motion to dismiss as well as their briefs in support of their supplemental consolidated motion to dismiss.

Respondents request leave to present oral argument on their consolidated motion to dismiss and their supplemental consolidated motion to dismiss.

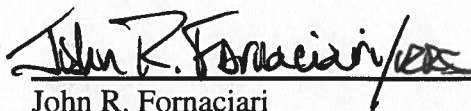
Respectfully submitted,



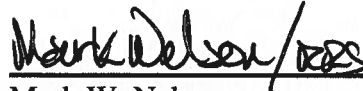
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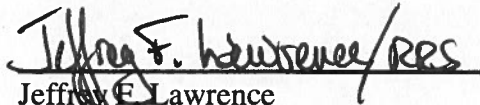


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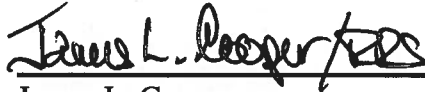


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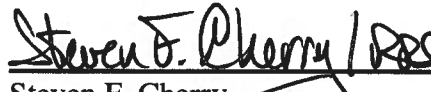
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FEDERAL MARITIME COMMISSION

Docket Nos. 16-01, 16-07, 16-10, 16-11, and 17-09

IN RE VEHICLE CARRIER SERVICES

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TABLE OF CONTENTS

	<u>Page</u>
TABLE OF AUTHORITIES	ii
I. PRELIMINARY STATEMENT	1
II. STATEMENT OF FACTUAL AND PROCEDURAL HISTORY	2
III. ARGUMENT	3
A. AS WITH THE CLAIMS PRESSED BY THE OTHER COMPLAINANTS, THE FCA COMPLAINT FOR REPARATIONS IS BARRED BY THE SHIPPING ACT’S THREE-YEAR STATUTE OF LIMITATIONS	3
1. FCA gets no relief from the discovery rule	3
2. FCA has not adequately pled a distinct violation within the statutory limitations period	8
3. Even if FCA adequately alleged impact within the statutory period, its allegations do not constitute a continuing violation	11
B. FCA FAILS TO STATE COGNIZABLE SHIPPING ACT CLAIMS	14
C. FCA LACKS STANDING TO SEEK REPARATIONS	17
IV. CONCLUSION	19
V. CERTIFICATE OF SERVICE	21

TABLE OF AUTHORITIES.

<u>CASES</u>	<u>Page(s)</u>
<i>Ashcroft v. Iqbal</i> , 556 U.S. 662 (2009).....	10, 14, 16, 17
<i>Baltic Auto Shipping, Inc. v. Hitrinov</i> , 33 S.R.R. 1238 (Initial Dec. 2015; exceptions withdrawn and case dismissed Apr. 21, 2017)	4
<i>Bell Atlantic Corp. v. Twombly</i> , 550 U.S. 544 (2007).....	10, 14, 15
<i>Bristol Myers Co. v. U.S. Lines, Inc.</i> , 21 S.R.R. 349 (FMC 1981).....	17 n.11
<i>CA Cartage Co. v. Pac. Maritime Ass’n</i> , 23 S.R.R. 420 (FMC 1985).....	17 n.10
<i>Chandler v. State Farm Mut. Auto Ins. Co.</i> , 598 F.3d 1115 (9th Cir. 2010)	17
<i>DNB Exports LLC v. Barsan Global Lojistik Ve Gumruk Musavirligi A.S.</i> , 32 S.R.R. 550 (ALJ, Admin. Fin. 2011).....	17
<i>Inlet Fish Prod., Inc. v. Sea-Land Serv., Inc.</i> , 29 S.R.R. 306 (FMC 2001).....	4
<i>In re Elevator Antitrust Litig.</i> , 502 F.3d 47 (2d Cir. 2007)	16
<i>Kobel v. Hapag-Lloyd A.G.</i> , 32 S.R.R. 1720 (FMC 2013).....	18
<i>Maher Terminals, LLC v. Port Auth. of N.Y. & N.J.</i> , 32 S.R.R. 1 (ALJ 2011)	8, 11
<i>Maher Terminals, LLC v. Port Auth. of N.Y. & N.J.</i> , 32 S.R.R. 1185 (FMC 2013).....	3, 4, 8 n.4, 11, 12 n.6
<i>Maher Terminals, LLC v. Port Auth. of N.Y. & N.J.</i> , 33 S.R.R. 303 (FMC 2014).....	11 n.6

<i>Maier Terminals, LLC v. Port Auth. of N.Y. & N.J.</i> , No. 12-02, 2015 WL 9426189 (FMC 2015).....	10, 11
<i>Sanrio, Inc. v. Maersk Line</i> , 19 S.R.R. 907 (ALJ, Admin. Final 1979).....	17 n.10
<i>Seatrains Gitmo, Inc. v. P.R. Maritime Shipping Auth.</i> , 18 S.R.R. 1079 (FMC 1979).....	8, 12-13
<i>Stauffer Chem. Europe S.A.</i> , 27 S.R.R. 417 (FMC 1995).....	17 n.11
<i>The Government of Guam v. Sea-Land Serv., Inc.</i> , 29 S.R.R. 894 (ALJ, Admin. Final 2002).....	17 n.10
<i>3M v. Hapag-Lloyd</i> , 20 S.R.R. 2020 (FMC 1981).....	17 n.11
<i>Total Benefits Planning Agency v. Anthem Blue Cross and Blue Shield</i> , 552 F. 3d 430 (6th Cir. 2008)	15, 16

STATUTES, REGULATIONS AND RULES

Shipping Act of 1984,	
46 U.S.C. § 40101, <i>et seq.</i>	2
46 U.S.C. § 40102(b)	14 n.7
46 U.S.C. § 40102(c)	14 n.7
46 U.S.C. § 40102(18)	18
46 U.S.C. § 40103(a)	14 n.7
46 U.S.C. § 41301(a)	3
46 U.S.C. § 40302(a)	14 n.7
46 U.S.C. § 41104(10)	14 n.7
46 U.S.C. § 41105	14 n.7
46 U.S.C. § 41305(b)	3
46 C.F.R. § 502.62(a)(4)(iii).....	3
46 C.F.R. § 535.401, <i>et seq.</i>	14 n.7
46 C.F.R. § 502.226(a)	7 n.3
<i>Fed. R. Civ. P.</i> 12(b)(1)	14, 14 n.9
<i>Fed. R. Civ. P.</i> 12(b)(6)	10, 14, 14 n.9

MISCELLANEOUS

- CSAV Pays \$625,000 Civil Penalty,*
NR 14-02 (Mar. 5, 2014), available at
<https://www.fmc.gov/NR14-02/?Archive=y&CategoryId=21&pg=3>7 n.3
- Mitsui O.S.K. Lines and Affiliate Pay \$1.275 Million Penalty,*
NR 14-01 (Feb. 12, 2014), available at
<https://www.fmc.gov/NR14-01/?Month=2&Year=2014&Archive=y>7 n.3
- Two Car Carriers Pay \$2.3 Million in Penalties,*
NR 13-19 (Dec. 23, 2013), available at
<https://www.fmc.gov/NR13-19/?Month=12&Year=2013&Archive=y>7 n.3

I. PRELIMINARY STATEMENT.

On April 28, 2017, Respondents, by and through their respective undersigned counsel, moved for the entry of an order dismissing the complaints consolidated under the caption “In re Vehicle Carrier Services” and filed in Docket Nos. 16-01 (the “Freight Forwarders Complaint”), 16-07 (the “End-Payers Complaint”), 16-10 (the “Truck Centers Complaint”), and 16-11 (the “Auto Dealers Complaint”) (the Freight Forwarders, the End-Payers, the Truck Centers and the Auto Dealers are referred to collectively as “Complainants”); that motion has been fully briefed and is pending before the Presiding Officer and the Federal Maritime Commission (“Commission”).

On or about October 6, 2017, complainants Fiat Chrysler Automobiles NV, FCA US LLC, and FCA Italy S.p.A. (collectively, “FCA”) filed a separate complaint before the Commission, which was docketed at Docket No. 17-09 (the “FCA Complaint”). By an October 18, 2017 initial scheduling order entered in that docket, the parties were instructed that if they

believe[d] that the issues in [Docket No. 17-09] are not common with the issues in the vehicle carrier services cases or that the pending motion to dismiss in the vehicle carrier services cases should not apply to this proceeding, then they should file a motion objecting to this scheduling order which states the grounds for the objection and proposes a plan for efficient resolution of this proceeding.

[Oct. 18, 2017 initial scheduling order, at 1.]

That objection was due by November 14, 2017. *Ibid.* No party filed any such objection.

As a result, the October 18, 2017 initial scheduling order further provided that, “[i]f no objection is filed, the pending motion to dismiss, opposition, and reply in the vehicle carrier services cases will be deemed to apply to this proceeding.” *Ibid.* It instructed that “[t]he parties to this proceeding should file a supplemental motion to dismiss, supplemental opposition,

and supplemental reply.” *Ibid.* It instructed that the supplemental briefs should indicate which issues and arguments previously briefed apply to this proceeding; should not repeat arguments already made in the pending briefs in the vehicle carrier services cases; and should identify and fully brief any new or different issues.” *Id.* at 1-2. It provided that “Respondents shall file their supplemental motion by November 30, 2017.” *Id.* at 2.

This supplemental consolidated motion followed.

II. STATEMENT OF FACTUAL AND PROCEDURAL HISTORY.

For purposes of this supplemental consolidated motion to dismiss, Respondents incorporate by reference the statement of factual and procedural history appearing in their original consolidated motion to dismiss, adding only the following.

According to the FCA Complaint, it seeks to “recover reparations and the cost of the lawsuit for its injuries resulting from the Respondents’ violations of the Shipping Act of 1984, 46 U.S.C. § 40101[,], *et seq.*” FCA Compl. ¶ 1. FCA -- parroting the other Complainants - - alleges that “[s]ince at least 1997, Respondents and unnamed conspirators have conspired and acted in concert to suppress competition for roll on, roll off cargo shipping services purchased by FCA and others.” *Id.* at ¶ 2. FCA further alleges that “Respondents carried out their conspiracy by entering into contracts and other agreements with FCA and charging FCA anti-competitive pricing, resulting in FCA paying far more for the roll on, roll off cargo shipping services than FCA would have in a competitive market.” *Ibid.* In other words, the FCA Complaint is, in all relevant respects, a composite mirror-image of the Freight Forwarders Complaint, the End-Payers Complaint, the Truck Centers Complaint, and the Auto Dealers Complaint, with the exception of its own particular shortcomings discussed below.

III. ARGUMENT.

Respondents respectfully submit that the FCA Complaint is legally deficient for the reasons outlined in Respondents' original consolidated motion to dismiss. Respondents further respectfully submit that the FCA Complaint must be dismissed with prejudice because (a) the claim for reparations is barred by the Shipping Act's three-year statute of limitations, (b) the FCA Complaint fails to state cognizable Shipping Act claims, and (c) FCA lacks standing to seek reparations, and (c).¹

Each legal deficiency is addressed separately.

A. AS WITH THE CLAIMS PRESSED BY THE OTHER COMPLAINANTS, THE FCA COMPLAINT FOR REPARATIONS IS BARRED BY THE SHIPPING ACT'S THREE-YEAR STATUTE OF LIMITATIONS.

1. FCA gets no relief from the discovery rule.

Like the claims presented in Docket Nos. 16-01, 16-07, 16-10, and 16-11, FCA's Shipping Act claims are time-barred. Respondents respectfully submit that the arguments regarding the statute of limitations set forth in their briefs in support of their original consolidated motion to dismiss apply with equal force to FCA and demonstrate that the FCA Complaint is time-barred; those arguments are incorporated by reference.

Under the Shipping Act, a complaint seeking reparations must be filed "within 3 years after the claim accrues." 46 U.S.C. §§ 41301(a), 41305(b); *see* 46 C.F.R. § 502.62(a)(4)(iii). Absent an exception to the general rule, a claim accrues and the statute of limitations begins to run when the injury occurs. *See Maher Terminals, LLC v. Port Auth. of N.Y. & N.J.*, 32 S.R.R. 1185, 1191 (FMC 2013).

¹ Respondents expressly reserve any jurisdictional defenses and objections not raised in their original or supplemental motion to dismiss briefs.

As previously noted, one exception to that general rule is the “discovery rule,” under which the statute of limitations begins to run when the complainant knew or should have known that it had a claim. *See Inlet Fish Prod., Inc. v. Sea-Land Serv., Inc.*, 29 S.R.R. 306, 314 (FMC 2001) (explaining discovery rule). Because the discovery rule is an exception to the general rule regarding the accrual of a Shipping Act claim, the complainant bears the burden to demonstrate that, even with the exercise of reasonable diligence, it could not have known about its claim within the limitations period. *Maier Terminals*, 32 S.R.R. at 1193; *see Baltic Auto Shipping, Inc. v. Hitrinov*, 33 S.R.R. 1238 (Initial Dec. 2015; exceptions withdrawn and case dismissed Apr. 21, 2017) (explaining that complainant seeking application of discovery rule “has the burden of showing that it falls within the exception by demonstrating that even with the exercise of reasonable diligence it could not have known of the purported injury”).

Assuming, solely for the purposes of this motion, that FCA reasonably was unaware of its claims prior to the September 6, 2012 “dawn raids,” the objective facts are fatal to FCA’s attempt to invoke the discovery rule exception. FCA filed its complaint on October 6, 2017, more than three years after the September 6, 2012 “dawn raids,” a date when all the other Complainants admitted in their federal court complaints that they were made aware of the facts underlying these claims. Because FCA’s Shipping Act claims are presumptively time-barred, FCA -- and FCA alone -- bears the burden to demonstrate that, in the exercise of reasonable diligence, it could not have known about its Shipping Act claims prior to October 2014. It has failed to meet that burden.

FCA attempts to elide the consequences of its inaction by tendering a barebones complaint containing virtually no specific dates or facts. For example, although FCA alleges that Respondents have been engaged in conduct in violation of the Shipping Act since “at least

1997,” FCA Compl. ¶ 2, it also asserts that because Respondents “did not file their agreements with the [Commission], as required by the Shipping Act. . . . FCA had no reason to suspect that an unlawful, anticompetitive agreement or agreements had been reached[.]” *Id.* at ¶ 43. FCA’s use of the “no reason to suspect” language suggests that FCA seeks to invoke the discovery rule to resurrect its time-barred claims. That conclusory pleading is insufficient in light of the publicly available facts demonstrating that FCA’s causes of action accrued well before October 2014 -- three years before it filed its complaint -- all of which are subject to official notice, not subject to reasonable dispute, and thus appropriate for a motion to dismiss.

As is made clear in Respondents’ original consolidated motion to dismiss, any complainant alleging injury arising out of Respondents’ alleged unfiled agreements either knew or should have known of its potential claims no later than September 6, 2012: that is when news of the “dawn raids” of Respondents’ offices and global antitrust investigations was publicized widely. FCA is no different than the other Complainants and either knew or, with reasonable diligence, should have known that, to be timely, any Shipping Act claims had to be filed within three years of that date. Yet, FCA waited for more than five years to file its claims. Tellingly, the FCA Complaint contains no allegations identifying a date after 2012 that would indicate that the accrual date for FCA’s Shipping Act claims should be any different from that applicable to the other Complainants. Like the other Complainants, FCA’s claims arise from the alleged unfiled agreements between Respondents, about which FCA was on notice by no later than September 6, 2012.

FCA has an even steeper hill to climb than the other Complainants in arguing that it did not know -- or, even with reasonable diligence, could not have known -- of the alleged conspiracy several years before filing a time-barred complaint. FCA cannot credibly maintain

that it -- the “seventh-largest automaker in the world” and “a publically traded company” that uses Vehicle Carrier Services “for shipments to and from the United States and between international ports[,]” FCA Compl. ¶¶ 5, 7-13 -- was unaware of the global investigations into Respondents’ alleged actions, which became the subject of widespread media reports starting with the September 6, 2012 “dawn raids.” As noted in Respondents’ briefs in support of their original consolidated motion to dismiss, FCA’s counterpart -- General Motors (“GM”) -- managed to timely file its complaint before the Commission, and specifically acknowledged that the “dawn raids” gave it notice.² Yet, FCA tenders nothing to suggest why it was on any less notice than GM. To the contrary, the allegations of the FCA Complaint reveal that FCA had actual notice of the investigations into Respondents’ allegedly unlawful agreements well before October 2014.

FCA expressly asserts that “[c]ompetition authorities around the world have actively investigated Respondents and their co-conspirators’ illegal conduct in the market for roll on, roll off cargo services,” and “[m]any of the Respondents and their co-conspirators have also been fined by foreign competition authorities.” Compl. ¶¶ 20-21. Although FCA strategically omits the date on which it became aware of the investigations, the only reasonable inference to draw is that FCA became aware of them on September 6, 2012, the same day as the rest of the public, based on the widespread publicity given to the “dawn raids” and investigations.

Assuming, again solely for the sake of argument, that the initial wave of widespread publicity did not give FCA actual or constructive notice of its claims, FCA still waited so long to bring its claims that even more publicity -- before October 2014 -- either gave

² It bears repeating that GM expressly identified the September 6, 2012 “dawn raids” as the date on which it was on notice of potential Shipping Act claims. There is no plausible argument justifying how FCA was not similarly on notice that same day.

FCA notice or should have given FCA notice. For example, in late 2013 and early 2014, the Commission issued multiple press releases regarding seven-figure “compromise agreements” reached with certain of the Respondents arising out of the same alleged conduct on which the FCA Complaint is based. Specifically, the Commission publicized compromise agreements reached with NYK and “K” Line on December 23, 2013; with MOL and NMCC on February 12, 2014; and with CSAV on March 5, 2014.³ Even in an implausible, counterfactual world where the widespread publicity surrounding the September 6, 2012 “dawn raids” and related investigations was not enough to put FCA on notice, these press releases demonstrate that -- at a minimum -- FCA was on actual or constructive notice well before October 2014.

Despite the abundance of widely-circulated news reports regarding the allegations against Respondents starting in 2012, the filing of multiple lawsuits in federal court in 2013, and the compromise agreements with the Commission in late 2013 and early 2014, FCA chose to sleep on its rights and deferred bringing this action for years after the latest date its Shipping Act claims arguably accrued under the discovery rule.

Like the Complainants in the other vehicle carrier services cases, FCA’s Shipping Act claims accrued no later than September 6, 2012. FCA has not pled -- and, indeed, cannot plead -- any facts to suggest otherwise; FCA cannot demonstrate that it is any different from the

³ See *Two Car Carriers Pay \$2.3 Million in Penalties*, NR 13-19 (Dec. 23, 2013), available at <https://www.fmc.gov/NR13-19/?Month=12&Year=2013&Archive=y>; *Mitsui O.S.K. Lines and Affiliate Pay \$1.275 Million Penalty*, NR 14-01 (Feb. 12, 2014), available at <https://www.fmc.gov/NR14-01/?Month=2&Year=2014&Archive=y>; *CSAV Pays \$625,000 Civil Penalty* NR 14-02 (Mar. 5, 2014), available at <https://www.fmc.gov/NR14-02/?Archive=y&CategoryId=21&pg=3>. The Commission can take official notice of both the widespread news coverage regarding the “dawn raids” and subsequent enforcement actions. See 46 C.F.R. § 502.226(a); Reply Brief at n.10. Among the matters of which the Commission can take notice include the Commission’s own press releases regarding action taken by the Bureau of Enforcement; those releases unquestionably put FCA on notice of the claims it now belatedly advances.

other Complainants, whose reparations claims also are time-barred. FCA's claims are time-barred, and must be dismissed with prejudice.

2. FCA has not adequately pled a distinct violation within the statutory limitations period.

FCA may argue that it has alleged a "continuing violation" into the statutory period. However, FCA has failed to allege any acts by Respondents within the limitations period and, even if it did, its allegations do not qualify as "continuing violations" under Commission precedent.

Commission decisions require that complainants plead a distinct violation within the three-year statutory limitations period in order to allege a "continuing violation" for reparations purposes. For example, in *Maheir Terminals, LLC v. Port Auth. of New York and New Jersey*, 32 S.R.R. 1, 28 (ALJ 2011), the Administrative Law Judge ("ALJ") concluded that Maheir Terminals could not claim reparations for allegedly discriminatory provisions in a lease that was signed more than three years before the filing of the complaint but continued to the present.⁴ In *Seatrains Gitmo, Inc. v. Puerto Rico Maritime Shipping Auth.*, 18 S.R.R. 1079, 1081-82 (FMC 1979), the Commission concluded that Seatrain could seek reparations for allegedly unlawful refusals to make a berth available within the three-year statutory limitations period for reparations (but not for earlier refusals), as each constituted a discrete violation. Both *Maheir* and *Seatrains* establish that a complainant seeking reparations must allege an independent violation of

⁴ As discussed further below, the Commission declined to adopt the ALJ's full discussion of the "continuing violation" theory, but upheld the determination that no reparations should be awarded for Maheir's claims, despite Maheir's argument that continued payments under the lease within the limitations period constituted a continuing violation. The Commission concluded that the claims accrued at the time the lease was signed -- which was more than three years before the filing of the complaint -- and therefore were time-barred. See *Maheir Terminals*, 32 S.R.R. at 1193-94.

the Shipping Act that accrued within the three-year statutory limitations period in order to invoke the continuing violation theory.

FCA falls well short of meeting its burden. FCA has failed to identify a single new act occurring within the statutory period and instead relies on conclusory and vague allegations. For example, FCA alleges that “[s]ince 1997, FCA has negotiated and entered into contracts and agreements with Respondents and their co-conspirators Some of those contracts are still in effect today.” FCA Compl. ¶ 23. Elsewhere, FCA alleges that “Respondents’ violations of the Shipping Act, on information and belief, continue to this day,” *id.* at ¶ 4, and that, in response to FCA’s requests for proposals, “Respondents and their co-conspirators submitted dummy bids that were designed to create the appearance of competition[.]” *id.* at ¶ 45.

FCA does not identify -- much less provide the date of -- any specific contract, “dummy bid”, or other act in furtherance of the alleged conspiracy within the three-year statute of limitations period. FCA’s allegations suggest that, despite (1) having doors kicked in and documents and computers carted off during the “dawn raids” by the Department of Justice (“DOJ”), European Commission, and other competition authorities worldwide, (2) the announcement and active prosecution of a DOJ criminal investigation against Respondents and their employees, (3) the payment of millions in fines to authorities for the same conduct complained of here, (4) the compromise agreements with the Commission settling allegations by the Bureau of Enforcement that Respondents engaged in the same conduct complained of here,⁵

⁵ For example, the Commission may take judicial notice of “K” Line’s August 13, 2013, Compromise Agreement with the Commission, which states that “Respondent has terminated the practices which are the basis of the alleged violations set forth herein, and has instituted and commits to maintaining measures designed to eliminate such practices in the future.” See Compromise Agreement, FMC File No. 17098.

and (5) the sprawling federal court litigation that preceded the filing of complaints before the Commission, Respondents actively continued their conspiracy until at least some point after October 2014. The suggestion that Respondents acted in such a facially implausible manner -- eschewing any supporting factual allegation -- defies common sense and abjectly fails to meet the pleading standards established by *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544 (2007), and *Ashcroft v. Iqbal*, 556 U.S. 662 (2009), and adopted by the Commission. See *Maher Terminals, LLC v. Port Auth. of New York and New Jersey*, No. 12-02, 2015 WL 9426189, at *8 (FMC 2015) (affirming dismissal and explaining that Commission applies *Fed. R. Civ. P.* 12(b)(6) standard and that “[t]he *Iqbal/Twombly* plausibility standard is consistent with sound administrative practice”); Br. in support of consolidated motion to dismiss at 45-56 (explaining “plausibility” standard); Section III.B, *infra* (explaining FCA’s failure to meet pleading standard).

The FCA Complaint does not contain any specific dates or allegations pointing to a single bid, contract, agreement, or action within the statutory limitations period. To the extent FCA claims to assert a “continuing violation” in respect of either Respondents’ alleged but unspecified actions during the three-year statutory limitations period prior to the filing of the complaint or the alleged pricing associated with FCA’s shipment of cars, FCA woefully fails to meet threshold pleading requirements: FCA has not identified a single shipment or contract that it alleges was impacted by the alleged unfiled agreements or other any allegedly unlawful conduct, much less one within the statutory limitations period. Under the *Twombly/Iqbal* standard, FCA’s generalized allegations of wrongdoing and “artificially inflated” pricing, FCA Compl. ¶¶ 23, 46, are insufficient to state a claim for a Shipping Act violation that occurred within the three years before FCA filed its complaint. Having failed to identify a single action

attributed to even a single Respondent that took place during the statutory limitations period, the FCA Complaint is untimely. *See Maher Terminals*, 2015 WL 8426189, at *14 (stating that facially plausible Shipping Act claim “necessarily requires factual allegations involving some combination of the who, what, when, where, and how of Shipping Act violations”). It cannot be gainsaid: the FCA Complaint remains subject to the Shipping Act’s three-year statute of limitations and must be dismissed.

3. Even if FCA adequately alleged impact within the statutory period, its allegations do not constitute a continuing violation.

Assuming, for the sake of argument, that FCA had identified a shipment or contract within the statutory limitations period that it alleges was impacted by the alleged unfiled agreements or other allegedly unlawful conduct -- which objectively it has not -- that still does not entitle FCA to pursue reparations.

As described above, in *Mahe Terminals, LLC v. Port Auth. of New York and New Jersey*, 32 S.R.R. at 1, the ALJ rejected Maher’s reparations claim based on alleged discrimination in lease terms for a straightforward reason: those claims accrued when the lease was executed. *See id.* at 28. The Commission affirmed the dismissal of Maher’s reparations claims, concluding they were brought outside of the three-year statute of limitations for reparations. *Mahe Terminals, LLC v. Port Auth. of New York and New Jersey*, 32 S.R.R. at 1185. The Commission agreed with the ALJ’s conclusion that Maher’s cause of action accrued at the time its lease with the port was signed. *Id.* at 1193-94. The Commission also rejected Maher’s claim of a continuing violation arising out of continued payments under its lease, holding that Maher’s claim properly had been dismissed.⁶

⁶ Maher’s later motion for reconsideration and remand for further consideration of the statute of limitations issues was denied. *Mahe Terminals, LLC v. Port Auth. of N.Y. & N.J.*, 33

FCA's claims here are analogous to the time-barred claims in *Maheer*. FCA alleges that the pricing in its contracts with Respondents was the result of "unfiled, supracompetitive pricing agreements" among Respondents and that FCA's continued payment under those contracts gives rise to continuing injuries that warrant reparations. *See* FCA Compl. ¶ 31. But this is precisely what *Maheer* rejected. Both the ALJ and the Commission concluded that the injury asserted by Maheer Terminals occurred -- and its claim accrued -- at the time the allegedly discriminatory lease provision was signed. Here, given that FCA either knew or should have known about its claims no later than September 6, 2012, its claims accrued more than five years before FCA filed its complaint on October 6, 2017. Any payments or delivery of services under FCA's then-existing contracts -- allegedly subject to "unfiled, supracompetitive pricing agreements" among Respondents -- after September 6, 2012 do not give rise to a continuing violation that would restart the statute of limitations period or somehow render it evergreen. FCA cannot avoid the reality that the statute of limitations on FCA's reparations claims started to run no later than September 6, 2012; its claims are untimely.

The type of claims pressed by the complainants both in *Maheer* and here are distinct from the type of claims presented in *Seatrains Gitmo, Inc. v. Puerto Rico Maritime Shipping Authority*, 18 S.R.R. at 1079, which asserted discrete violations during the limitations

S.R.R. 303 (FMC 2014) (rejecting petition for reconsideration). To the extent that FCA may rely on *Maheer*'s statement that a complainant is not "barred from alleging and proving a violation of the Act at any time" because even "after the remedy of reparations is no longer available, the remedy of a cease and desist order is" in an attempt to save its feeble request for injunctive relief (*see* Prayer for Relief 3), this also is unavailing. In *Maheer*, the Commission explained that "[t]he imposition of a cease and desist order normally requires a showing that unlawful conduct is ongoing or likely to resume." *Maheer*, 32 S.R.R. at 1190 n.8 (FMC 2013). As explained elsewhere, FCA has not alleged adequately any violation of the Shipping Act within the three-year statute of limitations period, let alone one that is "ongoing or likely to resume." Moreover, FCA's lack of standing and failure to adequately plead any Shipping Act violations are fatal to its claims on the merits, and also doom its request for injunctive relief.

period. In *Seatrain Gitmo*, the complainant sought reparations because the respondent had refused to allow it permission to dock at a certain facility. Seatrain's complaint alleged multiple instances of Seatrain specifically requesting to berth at the facility, and the port specifically denying those requests. Although the port's initial refusal to allow Seatrain to dock occurred outside of the limitations period, Seatrain identified at least one specific, independent request and refusal within the statutory limitations period. On that basis, and that basis alone, Seatrain was permitted to seek reparations limited to the discrete act(s) that occurred within the limitations period only. *Id.* at 1082. In contrast, FCA does not -- and cannot -- allege this type of discrete, independent action by Respondents within the limitations period that would support a continuing violation. Instead, FCA alleges unlawful, supracompetitive pricing in contracts that would have arisen from a discrete contracting process that took place well before the three-year limitations period. *See, e.g.*, FCA Compl. ¶ 23 ("Since 1997, FCA has negotiated and entered into contracts and agreements with Respondents . . . to purchase roll on, roll off cargo services. . . . Some of those contracts are still in effect today."); *id.* at ¶ 40 ("FCA made those purchases after conducting a procurement process by where bids were solicited and evaluated."); *id.* at ¶ 46 ("FCA invited Respondents and its co-conspirators to participate in a competitive purchasing process, in which FCA solicited bids for a new or renewed contract award. FCA then evaluated the bids, including by comparing the bids against historical rates. FCA then negotiated with the selected supplier."). FCA's claims do not -- and cannot -- give rise to liability under a continuing violation theory.

B. FCA FAILS TO STATE COGNIZABLE SHIPPING ACT CLAIMS.

FCA “copycats” the same causes of action asserted by the Freight Forwarders, End-Payors, Truck Centers, and Auto Dealers.⁷ In doing so, FCA repeats the same fundamental errors made by the other Complainants and, hence, it too fails to state cognizable and plausible Shipping Act claims.⁸ Like the other Complainants, FCA merely recycles portions of previously filed federal and state antitrust and unfair competition complaints, without sufficiently pleading any Shipping Act violations. For the reasons stated in Respondents’ original consolidated motion to dismiss, as well as for the reasons outlined below, FCA’s claims should be dismissed, either for lack of subject matter jurisdiction pursuant to *Fed. R. Civ. P.* 12(b)(1), or for failure to state cognizable claims pursuant to *Fed. R. Civ. P.* 12(b)(6).⁹

FCA’s attempt to meet the pleading requirements articulated in *Twombly* and *Iqbal* is inadequate for additional reasons. FCA -- which trumpets itself as “the seventh-largest automaker in the world” that “has purchased hundreds of millions of dollars’ worth of” vehicle carrier services, FCA Compl. ¶¶ 5, 23 -- offers even less “factual enhancement” than the other vehicle carrier services complainants, which themselves offer scant facts. *See Iqbal*, 556 U.S. at 677 (“Nor does a complaint suffice if it tenders ‘naked assertion[s]’ devoid of ‘further factual enhancement.’”) (quoting *Twombly*, 550 U.S. at 555). FCA presents almost no factual

⁷ Like the earlier complainants, FCA alleges violations of 46 U.S.C. § 40302(a), § 41102(b), § 41102(c), § 41103(a), § 41104(10), § 41105 and regulations promulgated under the Shipping Act, 46 C.F.R. § 535.401, *et seq.* Compare FCA Compl. ¶¶ 48–66 with Freight Forwarders Compl. ¶¶ 112–21, End-Payors Compl. ¶¶ 207–20, Truck Centers Compl. ¶¶ 184–97, and Auto Dealers Compl. ¶¶ 171–84.

⁸ Respondents’ arguments regarding the failure of the other complainants to state cognizable and plausible Shipping Act claims apply to FCA, and are fully incorporated herein by reference.

⁹ As previously noted in Respondents’ earlier submissions, the Commission may dismiss defective claims pursuant to *Fed. R. Civ. P.* 12(b)(1) and (b)(6).

information to support its allegations. For example, FCA vaguely alleges that each of the Respondents “provided, marketed, and sold” vehicle carrier services to FCA, FCA Compl. ¶¶ 7-13, 40, and that “[s]ome of those contracts are still in effect today.” *Id.* at ¶ 23. But, FCA provides no factual details whatsoever about its alleged interactions or contracts with Respondents, when it contracted for vehicle carrier services, with whom, for how much, or for how long. To the extent FCA had any contracts with Respondents, this information is well-known to FCA and plainly within FCA’s possession; the failure to plead these necessary facts is inexcusable and compels dismissal as a matter of law. *See, e.g., Total Benefits Planning Agency v. Anthem Blue Cross and Blue Shield*, 552 F. 3d 430, 436 (6th Cir. 2008) (affirming dismissal when complaint stated only beginning date for alleged conspiracy and lacked explanation as to when and how each defendant conspired). The reason for this shortcoming is plain: FCA has made a deliberate, strategic decision to limit the facts they offer in support of their Shipping Act claims in an attempt to avoid the Shipping Act’s three-year statute of limitations for reparations.

The common sense and judicial pragmatism underlying *Twombly* and *Iqbal* dictate that, in a desperate attempt to avoid an early dismissal of its fatally flawed complaint, FCA should not be allowed to play games with the Commission process by presenting intentionally bare bones allegations and withholding highly relevant, basic facts that it plainly knows. *See Twombly*, 550 U.S. at 557 (stating that pleading standard imposes obligation to plead factual “heft to ‘sho[w] that the pleader is entitled to relief’”); *see also id.* at 559 (explaining that judges “must retain the power to insist upon some specificity in pleading before allowing a potentially massive factual controversy to proceed”). Without the “further factual enhancement” required by *Twombly* and *Iqbal*, FCA’s claim that it “suffered and continues to suffer damages” related to these purported contracts, FCA Compl. ¶ 23, is nothing more than a

“naked assertion” that does not suffice to state a claim. *See Iqbal*, 556 U.S. at 678 (holding that pleading standard “demands more than an unadorned, the-defendant-unlawfully-harmed-me accusation”). Under *Twombly* and *Iqbal*, the Commission should “not unlock the doors of discovery for a [complainant] armed with nothing more than conclusions.” *See Iqbal*, 556 U.S. at 678-79.

Likewise, FCA asserts that “Respondents and their co-conspirators have secretly agreed to allocate customers and routes, rig bids, restrict capacity, and otherwise raise, fix, stabilize, or maintain prices for” vehicle carrier services “for shipments to and from the United States[,]” FCA Compl. ¶ 19, and that these alleged agreements “were secret and were not filed with the FMC and never became effective under the Shipping Act[,]” *id.* at ¶ 31. But, FCA provides no factual information about any agreements, meetings, or communications between or among Respondents to support those conclusory allegations. *See In re Elevator Antitrust Litig.*, 502 F.3d 47, 50 (2d Cir. 2007) (holding that allegations “in entirely general terms without any specification of any particular activities by any particular defendant” do not state claim); *see also Total Benefits Planning Agency, Inc.*, 552 F.3d at 436 (“Generic pleading, alleging misconduct against defendants without specifics as to the role each played in the alleged conspiracy, was specifically rejected by *Twombly*.”). FCA’s allegations are nothing more than “[t]hreadbare recitals of the elements of a cause of action, supported by mere conclusory statements,” which “do not suffice.” *See Iqbal*, 556 U.S. at 678; *see also id.* (“A pleading that offers ‘labels and conclusions’ or ‘a formulaic recitation of the elements of a cause of action will not do.’” (quoting *Twombly*, 550 U.S. at 555)).

The conclusion is inescapable: the FCA Complaint does not “plead[] factual content that allows the [Commission] to draw the reasonable inference that the defendant is

liable for the misconduct alleged” and instead presents only “labels and conclusions.” *See Iqbal*, 556 U.S. at 678. For these reasons, and for the reasons advanced earlier, the FCA Complaint should be dismissed.

C. FCA LACKS STANDING TO SEEK REPARATIONS.

To survive a motion to dismiss, FCA must plead facts which, if assumed to be true, demonstrate it has standing. *See, e.g., DNB Exports LLC v. Barsan Global Lojistik Ve Gumruk Musavirligi A.S.*, 32 S.R.R. 550, 553 (ALJ, Admin. Fin. 2011) (holding that complainant must plead facts that establish subject matter jurisdiction); *Chandler v. State Farm Mut. Auto Ins. Co.*, 598 F.3d 1115, 1122 (9th Cir. 2010) (explaining that standing is element of subject matter jurisdiction for limited forums that must be sufficiently pled). As advanced in Respondents’ original consolidated briefs in support of their motion to dismiss, only the actual person or entity that paid -- for its own account -- ocean freight charges directly to an ocean common carrier has standing to seek reparations.¹⁰ The Commission routinely has applied this requirement to reject claims by corporate parents, subsidiaries, and affiliates of the actual freight-payor.¹¹ Likewise, because freight forwarders and other agents do not purchase transportation services for their own

¹⁰ *See, e.g., CA Cartage Co. v. Pac. Maritime Ass’n*, 23 S.R.R. 420, 427 (FMC 1985) (holding that “the Commission has consistently construed [its statutory authority to grant reparations] as not permitting parties who have not actually paid contested charges to claim them as reparation”); *The Government of Guam v. Sea-Land Serv., Inc.*, 29 S.R.R. 894, 901-02 (ALJ, Admin. Final 2002) (“Uniformly, the rule has been deemed to require rejection of reparations claims by persons who . . . claim reparations by arguing that the direct payor passed the charges on to them”); *Sanrio, Inc. v. Maersk Line*, 19 S.R.R. 907, 907-09 (ALJ, Admin. Final 1979) (holding that only “the person who paid the freight to the carrier has standing to recover reparation for injury”).

¹¹ *See, e.g., Stauffer Chem. Europe S.A.*, 27 S.R.R. 417, 419 n.2 (FMC 1995) (noting that “the Commission has ruled that an overcharge case complainant, not merely its corporate affiliate, parent, or subsidiary, must produce evidence that it has either paid the freight or has validly succeeded to the claim”); *3M v. Hapag-Lloyd*, 20 S.R.R. 2020, 2021 n.3 (FMC 1981) (barring 3M from bringing claim for overcharges paid by its subsidiary); *Bristol Myers Co. v. U.S. Lines, Inc.*, 21 S.R.R. 349 (FMC 1981) (similar).

accounts, but only on behalf of others, they do not pay ocean freight charges directly, and thus lack standing to seek reparations. *See, e.g., Kobel v. Hapag-Lloyd A.G.*, 32 S.R.R. 1720, 1742 (FMC 2013) (quoting 46 U.S.C. § 40102(18)).

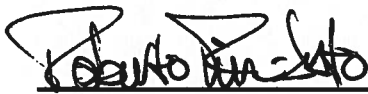
The FCA entities failed to plead facts showing that they have standing. Although they refer to themselves as “FCA” throughout the complaint, *see, e.g.*, FCA Compl. ¶¶ 1, 6, 18, 23, 40-41, they cannot avoid the conclusion that “FCA” in fact refers to three distinct entities: Fiat Chrysler Automobiles N.V. (the “FCA Parent”), headquartered in the United Kingdom; FCA US LLC, a wholly-owned subsidiary of the FCA Parent headquartered in Auburn Hills, Michigan; and FCA Italy S.p.A, a wholly-owned subsidiary of the FCA Parent headquartered in Turin, Italy, *see* FCA Compl. ¶ 5. They allege vaguely that they purchased transportation from and issued payments to unspecified Respondents; but, they fail to allege which of the three FCA entities actually purchased roll on, roll off services directly, when they did so, from whom they did so, and at what terms they did so. For example, they allege that “FCA [made] the purchases for roll on, roll off cargo services from its headquarters in Auburn Hills, Michigan and Turin, Italy,” and that “FCA also, from its headquarters in Auburn Hills and Turin, issued payments to Respondents for roll-on, roll-off cargo shipments.” FCA Compl. ¶¶ 18, 41. Based on these allegations, it is impossible to discern whether the wholly-owned subsidiaries of the FCA Parent were direct purchasers -- and that the FCA Parent was not -- or whether the wholly-owned subsidiaries were agents of the FCA Parent for purposes of those purchases. Sloppy pleading provides no excuse and cannot be condoned: FCA has failed to meet its burden of alleging facts from which the standing of any of its component entities may be inferred. The FCA Complaint should be dismissed.

IV. CONCLUSION.

For the foregoing authority, arguments and reasons, Respondents respectfully pray that, as supplemented, their motion to dismiss the complaints in Docket Nos. 16-01, 16-07, 16-10, 16-11, and 17-09 be granted, that the same be dismissed with prejudice, and that such other and further relief consistent with this prayer for relief be granted.

Respectfully submitted,

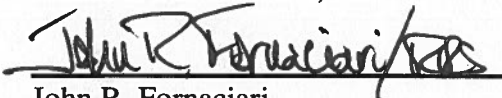
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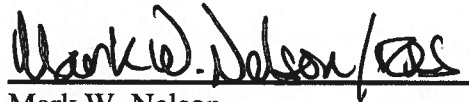
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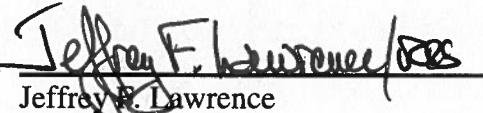


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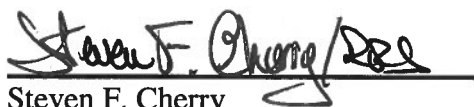
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V. CERTIFICATE OF SERVICE.

I hereby certify that, on November 30, 2017, true and correct copies of the foregoing supplemental consolidated motion to dismiss and brief in support, were filed electronically with the Secretary of the Federal Maritime Commission, and electronic copies thereof were sent to all lead/liaison counsel for complainants identified in the Commission's March 16, 2017 order and on the FCA Complaint.

DATED: November 30, 2017

A handwritten signature in black ink, appearing to read "Roberto A. Rivera-Soto", written over a horizontal line.

Roberto A. Rivera-Soto